

24STCV14630 24STCV14630

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-05

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Case Number: 24STCV14630 Hearing Date: August 5, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

WARREN HOLYFIELD, et al.

vs.

MICHAEL HERNANDEZ, MD

Case

No.: 24STCV14630

Hearing Date: August 6, 2026

Plaintiff's

motion compelling White Memorial to designate and produce one or more person(s)
most knowledgeable for deposition in response to Plaintiffs' Notice of
Deposition is GRANTED, consistent with the ruling set forth below. The PMK
deposition(s) is/are ordered to take place within 20 days of this order.

On 6/11/2024,

Plaintiffs Warren and Rebecca Holyfield (collectively, Plaintiffs) filed suit

against Michael Hernandez MD and Adventist Health Care Network, alleging wrongful death.

On

9/23/2024, Plaintiff filed a Doe Amendment substituting White Memorial Medical Center dba Adventist Health White Memorial for DOE-1.

On

6/4/2026, Plaintiffs moved for an ordering compelling White Memorial Medical Center dba Adventist Health White Memorial (AHWM) to designate and produce one or more person(s) most knowledgeable for deposition in response to Plaintiffs' Notice of Deposition.

Discussion

Plaintiffs

argue that AHWM must be compelled to produce their PMK pursuant to CCP section 2025.230. In support, Plaintiffs contend:

On multiple

occasions, Plaintiffs noticed the deposition of Defendant White Memorial Medical Center dba Adventist Health White Memorial with fourteen categories directed to Mr. Holyfield's October 2023 admission, evaluation, treatment, suicide-risk assessment, discharge, and related hospital handling of the occurrence. AHWM refused to designate any PMK, contending that the categories are not described with reasonable particularity and that, because multiple individuals participated in the admission and some providers were physicians or physician assistants not employed by the hospital, AHWM has no person or persons most knowledgeable who can testify on its behalf.

(Motion,
3: 3-11.)

In

opposition, AHWM argues that the deposition notice is overbroad, as the notice describes "the entirety" of Mr. Holyfield's care and treatment. AHWM also contends that various providers were not employed by the hospital, that several individuals had already been deposed, and that Plaintiffs should identify specific caregivers from the records for individual depositions. AHWM additionally identified Dr. Hannah Heath Janeway and James Anthony Slusher,

PA-C, as persons reflected in the records with respect to certain categories,

After review,

the Court finds the fourteen categories to be sufficiently particular. As put by Plaintiff, “the fourteen categories concern one patient, one admission, and one set of alleged negligent acts and omissions by AHWM in connection with Mr. Holyfield’s October 2023 hospitalization. They address the hospital’s knowledge of the patient’s presentation, history obtained, examinations, advice and warnings, care and treatment, diagnostic testing, discharge risks, suicide-risk assessments, and related internal handling.” (Motion, 6: 4-8.)

Moreover, the

Court is unpersuaded by AHWM’s position that no PMK exists because multiple individuals participated in the care and treatment and some were not hospital employees. Section 2025.230 does not require Plaintiffs to identify which individual employee or contractor knows each detail and then depose them separately before obtaining an entity deposition. Instead, the statute requires the entity to designate and produce those witnesses “most qualified” to testify on its behalf to the extent of information known or reasonably available to the deponent. If one witness cannot cover all topics, the entity may designate multiple witnesses. AHWM has access to the hospital chart, nursing notes, ED documentation, behavioral-health documentation, consult entries, discharge records, policies and procedures, and communications reflected in or reasonably obtainable from its systems. AHWM therefore can and must prepare witnesses to testify on the noticed categories from the hospital’s institutional knowledge.

And, even

assuming AHWM could not compel an outside physician to testify as a hospital designee, that does not excuse the hospital from designating current officers, directors, managing agents, employees, or agents who can testify to what is known or reasonably available to AHWM about those providers’ role, chart entries, orders, consults, and participation in the admission.

Finally, AHWM

objects to producing a PMK regarding Category 13 based on Evidence Code section 1157, which protects the proceedings and records of organized peer-review committees and peer review bodies from discovery. California authority recognizes that section 1157 is limited to protected proceedings and records, and does not extend categorically to all administrative matters. Accordingly, the Court compels PMK testimony on all nonprivileged aspects of the category

while allowing AHWM to preserve specific objections at deposition where privileged inquiry is posed.

Based on the foregoing, Plaintiff's motion compelling AHWM to designate and produce one or more person(s) most knowledgeable for deposition in response to Plaintiffs' Notice of Deposition is granted, consistent with the ruling set forth above.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517